

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
KYLE HAYNES and RALPH COMPERE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MICHAEL L. BALIONI, SHIELD NO. 20517, NYPD
POLICE OFFICER JIANTONG LI, SHIELD NO. 12604,
and NYPD POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH TEN,Defendants.
----- X**SUMMONS**

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiffs designates Kings
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 13, 2023

Yours, etc.

Gabriella Orozco

Gabriella Orozco, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiffs
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007

NYPD POLICE OFFICER MICHAEL L. BALIONI, Shield No. 20517, 60th Precinct, 2951 West 8th Street, Brooklyn, NY 11224

NYPD POLICE OFFICER JIANTONG LI, SHIELD NO. 12604, 60th Precinct, 2951 West 8th Street, Brooklyn, NY 11224

SUPREME COURT OF THE STATE OF NEW YORK
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VERIFIED COMPLAINTTHE CITY OF NEW YORK, NYPD POLICE OFFICER
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POLICE OFFICER JIANTONG LI, SHIELD NO. 12604,
and NYPD POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH TEN,**JURY TRIAL DEMANDED**

Defendants.

----- X

Plaintiffs KYLE HAYNES and RALPH COMPERE, by their attorneys, Shulman-Hill, PLLC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about September 3, 2022, at approximately 10:30 p.m., while lawfully in the vicinity of 3415 Neptune Avenue, County of Kings, State of New York, was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant police officers. In doing so, defendant officers caused serious physical and emotional injuries to Plaintiffs. Plaintiffs were deprived of their constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiffs, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiffs KYLE HAYNES and RALPH COMPERE are residents of the State of New York.

3. NYPD Police Officer Michael L. Balioni, Shield No. 20517 is and was at all times relevant herein an Officer with the New York City Police Department.

4. NYPD Police Officer Michael L. Balioni, Shield No. 20517 is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, NYPD Police Officer Michael L. Balioni, Shield No. 20517 was assigned to the 60th Police Precinct of the NYPD.

6. NYPD Police Officer Jiantong Li, Shield No. 12604 is and was at all times relevant herein an Officer with the New York City Police Department.

7. NYPD Police Officer Jiantong Li, Shield No. 12604 is being sued in their individual and official capacity.

8. Currently and at all times relevant herein, NYPD Police Officer Jiantong Li, Shield No. 12604 was assigned to the 60th Police Precinct of the NYPD.

9. NYPD Police Officers John and Jane Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. NYPD Police Officers John and Jane Does Numbers One Through Ten are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, Plaintiffs testified at a hearing held pursuant to General Municipal Law Section 50-H on January 25, 2023 and January 26, 2023.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On or about September 3, 2022, at approximately 10:30 p.m., while lawfully in the vicinity of 3415 Neptune Avenue, County of Kings, State of New York, the defendant police officers unlawfully arrested Plaintiffs without legal justification.

19. At the above time, Plaintiffs were hosting an event called Sea Rise Basketball Clinic for the children in the community at the local basketball court.

20. After the event, Plaintiffs and some friends from the community decided to stay on the court and play another game of basketball, when suddenly they heard a loud noise and ran for their safety.

21. A few moments later, about ten police vehicles suddenly appeared on the scene to investigate the alleged report of gunshots fired.

22. Defendant officers then approached Plaintiffs without legal justification and Plaintiffs and began questioning them about the incident.

23. Defendant officers Michael L. Balioni, Jiantong Li and defendant officers Jane and John Does then, absent any probable cause or reasonable suspicion, pushed both Plaintiffs and told them to back up.

24. The moment the Defendant officers arrived on the scene, they started to indiscriminately push innocent people around the area, causing many to fall to the ground, including Plaintiffs.

25. Plaintiff Compere was struck in the face by a Jane Doe, slammed to the ground and metal handcuffs were placed on their wrists.

26. Plaintiff Haynes was slammed to the ground, metal handcuffs were placed on their wrists and he was dragged to the police vehicle.

27. At no point in time did Plaintiffs resist arrest in any way.

28. Defendant Officers had no lawful basis to detain Plaintiffs, who had not broken any law, nor had he been given the opportunity to comply with any lawful order; nor did defendant officers have an objective credible basis to believe that Plaintiffs was engaged in criminal activity.

29. At no point did the Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiffs or from a location that was in Plaintiffs's possession, custody, or control.

30. Nevertheless, Plaintiffs were transported to the 60th Precinct against their will.

31. While in route to the 60th Precinct, Plaintiffs told defendant officers that they were in pain and needed medical attention. Defendant officers refused their requests.

32. Upon arrival at the 60th Precinct, the Plaintiffs were fingerprinted, photographed, and placed in a holding cell, as well as subjected to unlawful strip search.

33. While Plaintiffs was detained at the 60th Precinct, defendant officers knowingly submitted false and/or inaccurate information to the Kings District Attorney's Office accusing him of committing a crime.

34. Specifically, the Defendant officers falsely stated to the Kings County District Attorney's Office that Plaintiffs was resisting arrest, trespassing, obstructing governmental administration, and assault in the second degree.

35. After several hours at the 60th Precinct, Plaintiffs were transferred to Central Booking.

36. Eventually, after being held for several more hours, Plaintiffs were brought before a judge.

37. The false charges against Plaintiffs Compere were dismissed and sealed in their entirety on October 12, 2022 and for Plaintiffs Haynes all false charges were dismissed and sealed in their entirety on October 13, 2022.

38. Plaintiffs spent approximately twenty two (22) hours in unlawful custody.

39. Plaintiffs continue to suffer emotional trauma and distress from the actions of defendant officers complained of above.

40. Some of the police officer defendants observed the violation of Plaintiffs rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiffs.

41. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiffs to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

42. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

43. The individually named defendant officers, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

44. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION
False Imprisonment

45. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs was conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

47. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the United States Constitution.

48. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

THIRD CAUSE OF ACTION
Violation of Plaintiffs's Fourth and Fourteenth Amendment Rights:
Excessive Force

49. Plaintiffs repeats, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

50. The use of excessive force by defendants by, amongst other things, seizing, tightly handcuffing him, and strip searching him constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FOURTH CAUSE OF ACTION **Failure to Intervene**

51. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

52. The defendants that did not physically touch Plaintiffs, but were present when other officers knowingly violated Plaintiffs's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

53. Defendants failed to intervene to prevent the unlawful conduct described herein.

54. As a result of the foregoing, Plaintiffs suffered significant mental and emotional injuries, their liberty was restricted for an extended period of time, he was put in fear for their safety, and he was humiliated and subject to other physical constraints.

55. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the United States Constitution.

56. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION **Violation of Fourth and Fourteenth Amendment Rights:** **Denial of Right to Fair Trial/Due Process**

57. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

58. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded their false evidence to prosecutors in the Kings County District Attorney's Office.

59. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

60. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

61. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

62. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

SIXTH CAUSE OF ACTION

42 U.S.C. 1983 and State Law Malicious Prosecution

63. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

64. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

65. Defendants commenced and continued a criminal proceeding against Plaintiffs.

66. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for each of the charges for which he was prosecuted.

67. The prosecution and criminal proceedings terminated in Plaintiffs's favor on the aforementioned dates.

SEVENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiffs's AC 8-802 Rights

68. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

69. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

70. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

71. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining Plaintiffs and further causing their detention for approximately twenty two (22) hours in total.

72. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiffs's AC 8-802 Rights

73. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

74. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

75. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

76. The Defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

77. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

78. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

NINTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiffs's AC 8-802 Rights

79. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

80. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

81. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

82. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

83. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

84. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining Plaintiffs and further causing their detention for approximately twenty hours (22) hours in total.

85. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiffs's AC 8-802 Rights

86. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

87. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

88. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

89. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

90. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

91. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs's AC 8 – 802 rights against unreasonable search and seizure and

excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

92. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

93. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

94. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

95. Such conduct breached the protections guaranteed to Plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention Plaintiffs was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

96. As a direct and proximate result of defendants' deprivations of Plaintiffs rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

97. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

98. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

99. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of their action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of their action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 13, 2023

By: *Gabriella Orozco*
Gabriella Orozco, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiffs
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007

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ATTORNEY'S VERIFICATION

GABRIELLA OROZCO, ESQ. an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 13, 2023



GABRIELLA OROZCO